

26NWCP00186 26NWCP00186

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Case Number: 26NWCP00186 Hearing Date: August 3, 2026 Dept: C

GUILLERMO HERNANDEZ, A

MINOR, BY AND THROUGH HIS GUARDIAN AD LITEM ESMERALDA PINEDA, et al. vs LITTLE

LAKE CITY SCHOOL DISTRICT, A PUBLIC ENTITY, et al.

CASE

NO.: 26NWCP00186

HEARING:

8/3/26 @ 9:30 AM

#11

TENTATIVE RULING

Petitioner GUILLERMO HERNANDEZ's Petition for Order for Relief from Claim Statute is GRANTED.

Moving Party to give NOTICE.

Petitioner

Guillermo Hernandez (Petitioner) petitions the court for relief from the claim filing requirement pursuant to Gov. Code § 946.6.

Background

On November 6, 2024, Petitioner, a minor and student at Lake Center Middle School (School) located at 10503 Pioneer Blvd., Santa Fe Springs, CA 90670, was on campus when he was harassed,

bullied and assaulted by other students while under the custody, control, and care of Respondents, causing him to sustain severe injuries and damages. (Petition, ¶ 1.) As a result of being bullied, Petitioner tried to commit suicide within the premises of the School. (Petition, Exh. C.)

Legal Standard

Any claim against a public entity for personal injury or death must be presented within 6 months of accrual of the cause of action. (Gov. Code § 911.2.) Claimant has up to 1 year after accrual of the cause of action to apply to the public entity for permission to file a late claim. (Gov. Code § 911.4.)

“The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application... was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 [one year after accrual of the cause of action]... and that one or more of the following is applicable: (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” (Gov. Code § 946.6(c)(1).)

“Filing a late-claim Application within one year after the accrual of a cause of action is a jurisdictional prerequisite to a claim-relief Petition. When the underlying Application to file a late claim is filed more than one year after the accrual of the cause of action, the Court is without jurisdiction to grant relief under Government Code section 946.6.” (Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1779.)

Discussion

The relevant claim filing history as to Defendant LITTLE LAKE CITY SCHOOL DISTRICT (School District) is as follows:

On May 7, 2025, Petitioner filed a government tort claim for damages with the School District. Petitioner concedes that this claim was filed one day late given the requirement that Petitioner file a

government claim within six months of the accrual date (November 6, 2024).

On November 5, 2025, School District rejected
Petitioner's government tort claim. The Notice of Rejection stated:

"Notice is
hereby given that the claim presented to the Little Lake City School District
on May 7, 2025, has been reviewed by the District's Board of Trustees and is
hereby rejected."

The rejection warned Petitioner that he has
"only six (6) months from the date this notice was personally delivered or
deposited in the mail to file a court action on claims subject to the
California Tort Claims Act. (See Government Code section 945.6.)" (Stone Decl.,
Exh. 1.) This six-month period expired on May 5, 2026.

On November 6, 2025, Petitioner applied to
CITY OF SANTA FE SPRINGS, COUNTY OF LOS ANGELES, and LITTLE LAKE CITY SCHOOL
DISTRICT for leave to file a late government tort claims for damages. (Petition, Exh. F (emphasis added).) The petition to file
a
late government tort claim was based on Petitioner's Guardian Ad Litem
ESMERALDA PINEDA's (PINEDA) mistake as to the date of the incident, which
caused the original claim to be filed one day late on May 7, 2025, as opposed
to May 6, 2025.

PINEDA explains that when she retained
Downtown L.A. Law Group following the incident, she mistakenly identified the
date of the incident as November 8, 2024, in the intake and retention
paperwork. She later stated that the date was November 7, 2024. Based on that
information, the deadline to submit the government claim was calendared for May
7, 2025. (Pineda Decl., ¶ 4.) Pineda later confirmed with Downtown L.A. Law
Group that the correct date of the incident was November 6, 2024, not November
7 or 8, 2024. By that time, however, the government claim had already been
prepared and submitted based on the initially provided date. (Id., ¶ 5.)
The confusion regarding the date of the incident arose because the matter
involves a series of related events, including ongoing harassment and bullying
by both peer students and school staff, occurring before and after November 6,
2024, rather than a single isolated incident. These events escalated over time
and ultimately resulted in injury to Plaintiff. (Id., ¶ 6 (erroneously
designated as para. 4).)

Petitioner filed the instant
Petition for Relief from Claim Statute on May 8, 2026.

Petitioner argues that the original
claim was filed one day late (on May 7, 2025) due to mistake, inadvertence,
surprise and/or excusable neglect as described above. Petitioner contends that because the School
District failed to act on Petitioner's late claim filed on November 6, 2025, it
was deemed denied 45 days later on December 21, 2025. (See, Cal. Govt.
Code § 911.6(c) (if the board fails to act, the application shall be deemed to
have been denied on the 45th day).)

In opposition, School District argues that the
six-month statute of limitations for filing suit expired on May 5, 2026, and
this petition was filed on May 8, 2026. School District argues that Petitioner filed
a timely claim on May 7, 2025, which the District accepted and rejected. Petitioner
failed to file the instant petition before the May 5, 2026 deadline. Moreover,
School District argues that it would be prejudiced because more than 19 months
have passed since the alleged November 6, 2024 incident. Witnesses' memories
have faded, and evidence may no longer be available. The District had no record
of the incident when the original claim was filed, and the passage of
additional time has only compounded the difficulty of investigating Plaintiff's
allegations.

In reply, Petitioner argues that the late
claim was timely under Government Code section 911.4(b) because it was
submitted on November 6, 2025, within one year of the November 6, 2024 accrual
date. Because the School District failed
to respond to the late claim, it was deemed
denied December 21, 2025 under section 911.6(c). Section 946.6(b) gave Plaintiff six months
from that date, or until June 21, 2026, to file this Petition with the Court. (See,
Cal. Govt. Code § 946.6(b) (petition for relief shall be filed within six
months after the application to the board is denied or deemed to be denied).)
The instant petition was timely filed on May 8, 2026. Moreover,
Petitioner's counsel declares to have never received School District's November
5, 2025 rejection to the original claim presentation. (Ghazaryan Decl., ¶ 2.)

The Court finds that Petitioner attempted to
file a late claim with School District, and it is undisputed that School
District failed to respond to Petitioner's late claim application. (Opp. p. 5: 7-10.)

The School District argues that it was under no obligation to respond to the late claim because it had already rejected the original claim. Once a claim is rejected, the claimant's remedy is to file suit within six months, not to file a late claim.

Here, Petitioner corrected the original claim by filing a late claim. Petitioner appropriately presented the late claim to the School District on November 6, 2025, within the time requirements of section 911.4. Once the late claim was deemed denied for lack of response from the School District under Gov. Code § 911.6, Petitioner timely petitioned this court for relief under Gov. Code § 946.6.

Separately, Petitioner's counsel has declared under penalty of perjury that Petitioner's law firm did not receive the November 5, 2025 Notice of Rejection of Claim attached as Exhibit 1 to Defendant Little Lake City School District's Opposition. (Ghazaryan Decl., ¶ 2.) The Court finds that regardless of whether Petitioner received the notice of rejection, the late claim required a response from School District. Because the School District did not respond, the operable deadline to file suit became June 21, 2026. Thus, the instant petition was timely filed on May 8, 2026.

With this ruling, the Court recognizes it is excusing Petitioner's initial failure to state the correct accrual date and the fact that it did not receive the School District's Notice of Rejection of Claim. However, section 946.6 is a remedial statute which should be construed in favor of relief whenever possible. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270.)

Accordingly, the Petition is GRANTED.